

18. 9:00 AM CASE NUMBER: N25-1244
CASE NAME: MALINA CURIALE VS. RUBY LIU
HEARING IN RE: MOTION TO SET ASIDE VOID JUDGMENT
FILED BY:
TENTATIVE RULING:

Respondent Ruby She Liu's Motion to Set Aside Void Judgment is **DENIED**.

Background

This is a Civil Harassment Restraining Order (CHRO) proceeding filed by Petitioner Malina Mae Curiale against Respondent Ruby She Liu.

On September 2, 2025, then-Commissioner Verriere conducted an evidentiary hearing with both parties present, considered the testimony of the parties and other evidence submitted, and granted a CHRO against Respondent.

Respondent filed both an appeal of the September 2 order and a Motion to Vacate the order. On October 31, 2025, Judge Marquez denied the Motion to Vacate on all grounds, including Respondent's contention that Commissioner Verriere lacked jurisdiction to proceed in the absence of a stipulation of the parties. Respondent filed a notice of abandonment of the appeal on November 4, 2025.

On November 26, 2025, Respondent filed a motion for reconsideration of Judge Marquez's October 31 order, again raising the commissioner's jurisdiction and asserting newly discovered evidence. That motion was set for hearing on December 30, 2025 and continued several times before Judge Marquez heard and denied it on April 27, 2026.

On March 2, 2026, while her motion for reconsideration was still pending, Respondent filed the instant motion to set aside void judgment under Code of Civil Procedure section 473(d).

Respondent moves to set aside the September 2, 2025 order as void under Code of Civil Procedure section 473(d), contending that Commissioner Verriere lacked subject matter jurisdiction because *Petitioner* was purportedly never properly advised of her right to consent or object to proceedings before a commissioner, and did not consent. On that basis, Respondent contends that no valid bilateral stipulation was formed and the CHRO is void. Respondent requests dismissal of the underlying petition with prejudice and removal of the matter from the CLETS system.

Analysis

Although Respondent styles her motion as one to set aside a void judgment under Code of Civil Procedure section 473(d), the nature of a motion is determined by the relief sought, not the label attached to it. (*California Correctional Peace Officers Assn. v. Virga* (2010) 181 Cal.App.4th 30, 43.) Because the instant motion seeks the identical relief as Respondent's prior Motion to Vacate and Motion for Reconsideration, vacatur of the September 2, 2025 order, Respondent's motion under Code of Civil Procedure section 473(d) is properly construed a renewed motion governed by Code of

Civil Procedure section 1008(b).

Code of Civil Procedure section 1008(a) provides,

(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

Section 1008(e) provides,

(e) This section specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section.

"According to the plain language of the statute, a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon 'new or different facts, circumstances, or law.'" (*Gilbert v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) Section 1008 is meant "to reduce the number of motions to reconsider and renewals of previous motions heard by judges in this state." (*California Correctional Peace Officers Assn., supra*, 181 Cal.App.4th at 42.)

Respondent moves to set aside the September 2, 2025 civil harassment restraining order as void under Code of Civil Procedure section 473(d), contending that the commissioner lacked jurisdiction because Petitioner was never properly advised of her right to consent or object to proceedings before a commissioner so no valid stipulation was obtained. This is the third time Respondent has sought vacatur of the same order, each time asserting variations of the same jurisdictional argument.

Although Respondent now invokes a different statutory vehicle and grounds her argument in Petitioner's alleged failure to consent to the commissioner's authority, she seeks identical relief. Her motion is not based on new or different facts, circumstances, or law -- only a new argument she could have advanced in her prior motions. That is insufficient to satisfy the requirements of section 1008, subdivision (b). (*Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1199.)

Even if the court were to reach the merits, the motion would be denied. Respondent does not challenge the stipulation to proceed before Commissioner Verriere at the September 2, 2025 hearing at which the evidentiary record was made and the CHRO was issued. Respondent's argument is limited to what occurred at the August 5, 2025 hearing, a preliminary proceeding that resulted only in a continuance to permit service of the petition on Respondent. Respondent offers no reasoned analysis explaining why the absence of a stipulation at the August 5, 2025 preliminary hearing, which

produced no substantive order, would invalidate the CHRO issued following the September 2, 2025 evidentiary hearing at which the parties consented to proceed.

Respondent's request for dismissal of the underlying petition with prejudice and removal of the matter from the CLETS system is likewise denied, as it is predicated on the granting of the motion to set aside.

Disposition

Based on the foregoing, the motion is **DENIED** in its entirety.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C23-02000
CASE NAME: JAQUELINE BECCARI VS. ALLSTATE INSURANCE COMPANY
***HEARING ON MOTION FOR DISCOVERY COMPEL DISCOVERY RESPONSES**
FILED BY: ALLSTATE INSURANCE COMPANY
TENTATIVE RULING:

Defendant Allstate Insurance Company ("Defendant") filed a Motion to Compel Discovery Responses (the "Motion to Compel") against plaintiff Jacqueline Beccari ("Plaintiff") on February 26, 2026. The Motion to Compel was set for hearing on June 22, 2026.

Background

The Motion to Compel relates to a supplemental discovery request and production of documents served on Plaintiff on December 30, 2025 (the "Discovery Request"). See Declaration of Christopher Todd filed February 26, 2026 as part of Motion to Compel Discovery Responses ("Todd Decl."), ¶¶9-10 and **Exhibit B** thereto (including Proofs of Service dated December 30, 2026). The declaration describes a set of initial discovery requests served on March 8, 2024 with Plaintiff serving responses on April 9, 2024. *Id.* at ¶16. On October 22, 2025, Defendant sent a meet and confer letter requesting supplemental responses to the initial requests. *Id.* at 7. Plaintiff's counsel responded to the meet and confer letter but no discovery responses were provided. *Id.* Defendant subsequently served the subject Discovery Request on December 30, 2025, with a deadline on February 2, 2026. *Id.* at 9. No responses were received by the deadline. *Id.* Defendant sent an additional meet and confer letter on February 3, 2026 regarding the deadline but received no response. *Id.* at 11. The Motion to Compel was subsequently filed on February 26, 2026. See Motion to Compel filed February 26, 2026.

Plaintiff served responses to Defendant's Discovery Request on June 8, 2026. See Declaration of Michael Stone-Molloy as part of Notice of Mootness filed June 8, 2026 ("Stone-Molloy Decl."), ¶14 and **Exhibit A** thereto (including Proofs of Service dated June 8, 2026).